

24CHCV03453 24CHCV03453

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-09-14

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Case Number: 24CHCV03453 Hearing Date: September 14, 2026 Dept: F49

Dept. F49

Date: 9/14/26

Case Name: Loanny Cortes v. Caruso's Italian Kitchen;
Caruso's Cucina Italiana; Hani Mammo; Mudafar Mammo; and Does 1-20

Case No. 24CHCV03453

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 14, 2026

MOTION TO SET
ASIDE DEFAULTS

Los Angeles Superior
Court Case No. 24CHCV03453

Motion filed: 3/30/26

MOVING PARTY: Defendants Caruso's Italian
Kitchen and Hani Mammo

RESPONDING PARTY: Plaintiff Loanny Cortes

NOTICE: OK

RELIEF REQUESTED: An order from this Court setting aside the clerk's entry of default against Defendants Caruso's Italian Kitchen and Hani Mammo.

TENTATIVE RULING: The Motion is GRANTED.

BACKGROUND

This employment dispute arises from alleged misclassification of workers, failure to track hours worked, and failure to afford statutory meal and rest periods, resulting in underpayment of wages.

On September 24, 2024, Plaintiff Loanny Cortes ("Plaintiff") initiated this action. Subsequently, on February 19, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants Caruso's Italian Kitchen ("Caruso's Kitchen"), Caruso's Cucina Italiana ("Caruso's Cucina"), Hani Mammo ("Hani"), Mudafar Mammo ("Mudafar"), and Does 1 through 20, alleging the following causes of action: (1) violation of the Private Attorneys General Act; (2) failure to pay minimum wage; (3) failure to compensate for all hours worked; (4) failure to pay overtime compensation; (5) failure to pay rest period compensation; (6) failure to pay meal period compensation; (7) failure to furnish accurate wage and hour statements; (8) failure to pay wages upon discharge; (9) statutory penalties, (10) failure to indemnify and illegal deductions from wages; and (11) unfair competition. On July 7, 2025, at the request of Plaintiff, Mudafar was dismissed from the action.

On November 5, 2025, default was entered against Hani and Caruso's Kitchen. On February 2, 2026, default was entered against Caruso's Cucina.

On March 30, 2026, Caruso's Kitchen and Hani (collectively, "Moving Defendants") filed the instant Motion to Set Aside Defaults (the "Motion").

On August 21, 2026, Plaintiff filed

an Opposition.

On August 27, 2026, Moving Defendants filed a Reply.

On September 3, 2026, the Court continued the matter and ordered supplemental briefing from the parties based on Moving Defendants' counsel's representation that he committed error and could provide additional facts showing attorney fault.

On September 8, 2026, Plaintiff filed a supplemental brief in opposition to the Motion. That same day, Moving Defendants' counsel submitted a supplemental declaration in support of set-aside, and Plaintiff filed an objection and response to the declaration.

ANALYSIS

Code

of Civil Procedure section 473 authorizes the Court to set aside default "taken against a party through the party's mistake, inadvertence, surprise, or excusable neglect." (§ 473, subd. (b).) This discretionary relief provision "is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted. [Citations.]" (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233.) "[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. [Citations.]" (Ibid.)

When

an application for relief is made within six months after entry of judgment and is accompanied by "an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect," the court must vacate any default entered by the clerk which will result in default judgment. (Code Civ. Proc., § 473, subd. (b).) Relief from default is mandatory if based on attorney mistake, neglect, inadvertence, or surprise. (Ibid.)

Additionally,

where the Court determines that service did not result in actual notice to the responding party in time to defend the action, and that the lack of notice "was not caused by the party's avoidance of service or inexcusable neglect, it may

set aside the default ... on whatever terms as may be just and allow the party to defend the action.” (§ 473.5, subd. (c).)

A.

Plaintiff's Objection

Plaintiff objects to the entirety of the declaration of Moving Defendants' counsel, James Howard (Howard"). Plaintiff contends that because the Court's September 3, 2026 order directed that "[s]upplemental briefs are due no later than the end of the business day on 09/08/2026" and the declaration is not a brief, it is beyond the scope of what is permitted by the order and should not be considered. (Objection and Response to September 8, 2026 Supplemental Declaration of James Howard ("Objection"), at p. 2.) This objection is OVERRULED.

Plaintiff also objects to Paragraph 8 of Howard's declaration "to the extent it is offered as proof that Plaintiff requested the defaults for an improper purpose." (Objection, at p. 6.) The Court agrees that the assertion that defaults were sought to "gain leverage and demand additional discovery" lack foundation and constitute an improper opinion. This objection is SUSTAINED.

B.

Motion to Set Aside Defaults

Moving Defendants seek to set aside the defaults entered against them on November 5, 2025. They cite three separate grounds for relief in the Motion: (1) the mandatory relief provision of Code of Civil Procedure section 473, subdivision (b), (2) the discretionary relief provision of section 473, subdivision (b), and (3) Code of Civil Procedure section 473.5.

(1)

Mandatory Relief Under Section 473, Subdivision (b)

The mandatory provision of Code of Civil Procedure section 473, subdivision (b) requires the court to vacate any resulting default entered by the clerk against an attorney's client if relief is requested within six months after entry of judgment, is in proper form, and is accompanied by "an

attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect." The Court must grant relief even in cases where the neglect was inexcusable. (*Martin Potts & Associates, Inc. v. Corsair* (2016) 244 Cal.App.4th 432, 439.)

Mandatory relief requires a genuine concession of error on the part of the attorney. (*State Farm Fire & Casualty Co. v. Pietak* (2001) 90 Cal.App.4th 600, 609-610 [relief unavailable "[a]bsent a straightforward admission of fault" by attorney]; *Cowan v. Krayzman* (2011) 196 Cal.App.4th 907, 916 [finding no error in denial of mandatory relief where defense counsel's declaration "did not unequivocally admit error"].)

At the September 3, 2026 hearing on the Motion, the Court was inclined to agree with Plaintiff that Moving Defendants were not entitled to mandatory relief because Howard did not genuinely concede error in his supporting declaration, instead blaming Plaintiff's counsel for dishonoring an agreement not to request entry of default and for intra-office error. (See Mot., at p. 5; Howard Decl., ¶¶ 7, 12.) Howard represented at the hearing that he believed he had admitted fault and that he could file a supplemental declaration clarifying that the defaults were entered due to his mistake. The Court continued the hearing to permit supplemental papers to be filed.

Howard has submitted a supplemental declaration stating that "these defaults were the result of my attorney error." (Suppl. Howard Decl., ¶ 1, emphasis in original.) Howard attests that the defaults were entered because he misunderstood the communications from Plaintiff's counsel regarding the agreement to postpone entry of default and missed the email that would have clarified that response to the FAC was due. (Id., ¶ 2.) Howard admits that the better course would have been to act promptly rather than relying on an informal agreement, which he ultimately misinterpreted. (Id., ¶¶ 4-5.)

Plaintiff suggests that Howard's declaration consists of continuing assertions of outside fault repackaged as attorney error. (Objection, at p. 4.) The Court finds that Howard's admission of missed communications and concession that he misunderstood the extent of the agreement between counsel reconcile with the apparent miscalculation in his handling of this matter reflected in the moving papers. The Court finds that Howard's supplemental declaration satisfies the requirements for mandatory relief.

The Court accordingly GRANTS the Motion.

(2)

Discretionary Relief and Lack of Actual

Notice

Given that the Court has granted the Motion based on Howard's supplemental declaration of fault, the Court need not address relief pursuant to the discretionary relief provision of section 473, subdivision (b), and lack of actual notice pursuant to section 473.5.

C.

Monetary

Sanctions

"The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties." (Code Civ. Proc., § 473, subd. (b).)

Plaintiff requests an order directing Howard to pay reasonable compensatory legal fees and costs and establishing a timeline for submission of the fee declaration. Because mandatory relief has been granted pursuant to section 473, subdivision (b), such order is required and the request is GRANTED.

CONCLUSION

The Court GRANTS Defendants Caruso's Italian Kitchen and Hani Mammo's Motion to Set Aside Defaults. Moving Defendants are ordered to separately file and serve their proposed answer within ten days.

Moving

Defendants' counsel is ordered to pay reasonable compensatory legal fees and costs to Plaintiff's counsel, in an amount to be determined upon further hearing.

The

Case Management Conference is continued to _____ at 8:30 a.m. in

Department F49.

Plaintiff's

counsel is ordered to file a supplemental declaration in support of attorney fees and costs at least ten days prior to the Case Management Conference.

Moving party to give notice.